

Submitted by Emily Feltren, Director of Government Relations

February 26, 2016

Ms. Maria Pallante
Register of Copyrights
United States Copyright Office
101 Independence Avenue S.E.
Washington, D.C. 20559

RE: Section 1201 Study: Notice and Request for Comment (80 F.R. 81369, Docket No. 2015-8)

Dear Ms. Pallante:

The American Association of Law Libraries (AALL) is pleased to submit these comments in response to the Copyright Office's December 29, 2015 Section 1201 Study: Notice and Request for Public Comment. We appreciate the Copyright Office's inquiry into section 1201 of Title 17, including the triennial rulemaking process.

Section 1201 has been plagued with issues since its enactment in 1998. Throughout our participation in the legislative process that led to the enactment of the Digital Millennium Copyright Act (DMCA), AALL expressed concern that the Act's complicated rules would prevent circumvention for noninfringing, legitimate uses; today, nearly twenty years later, we still hold that view. Section 1201's restrictions and rulemaking process are cumbersome and do not adequately address issues with circumvention of technological protection measures.

While AALL would like to see a complete revision of section 1201, we focus these comments on advocating for clarification of the role of existing copyright exemptions and changes to the rulemaking process, particularly *de novo* review of previously granted exemptions and permanent exemptions.

I. DMCA's Relationship with Copyright Law Requires Clarity

A primary problem with the DMCA is its uncertain relationship with the remainder of copyright law. While section 1201(c) explicitly states that "[n]othing in this section shall affect rights, remedies, limitations, or defenses to copyright infringement, including fair use," courts have reached opposite conclusions as to whether the bans on circumvention and trafficking are applicable where a limitation or defense to copyright infringement applies, such as fair use.¹

¹ Compare *Chamberlain Group, Inc. v. Skylink Technologies, Inc.*, 381 F.3d 1178, 1203 (Fed. Cir. 2004) (finding that circumvention is only prohibited when it "infringes or facilitates infringing a right protected by the Copyright Act") with *MDY Industries, LLC v. Blizzard Entertainment, Inc.*, 629 F.3d 928 (9th Cir. 2010) (declining to follow *Chamberlain* and stating that "Congress created a distinct anti-circumvention right under § 1201(a) without an infringement nexus requirement.") and *United States v. Elcom, Ltd.*, 203 F. Supp. 2d 1111 (N.D. Cal. 2002) ("The statute does not distinguish between devices based on the uses to which the device will be put. Instead, all tools that enable circumvention of use restrictions are banned, not merely those use restrictions that prohibit infringement.

Commenters and members of Congress have long recognized this as a significant flaw in the DMCA, as evidenced by repeated proposed legislation that would bring the scope of the DMCA back to the contours of copyright law.² AALL agrees with the Library Copyright Alliance and other commenters who have suggested that liability should only attach to circumvention that enables infringement.³

II. The DMCA Rulemaking Process Needs Revision

AALL agrees that the rulemaking process requires revision. Commenters and scholars have repeatedly bemoaned the burdensome nature of the *de novo* review process.⁴ AALL agrees with these commenters, and agrees with the framework set forth by the Library Copyright Alliance in its written testimony before Congress.⁵ The burden of proof should be placed on those opposing renewal of exemptions, and exemptions should become permanent upon granting of a second renewal.

In many instances, technology is unpredictable and an exemption sought today can be unnecessary in three years. Alternatively, sometimes technology persists and an exemption may be necessary for an undeterminable amount of time. A change in the rulemaking, such as the one above, permits flexibility and predictability. Groups and individuals should be able to rely upon some exemptions as they seek access to information and push technological innovation.

III. Exemptions Should Extend to the Anti-trafficking Provisions

As currently written, the anti-trafficking provisions of section 1201(a)(2) and 1201(b) effectively prevent the legal usage of exemptions to the anti-circumvention provisions. Section 1201(a)(1)(C) allows for lawful circumvention of access controls pursuant to exemptions granted by the Librarian of Congress; however, there is no allowance for exemptions to the anti-trafficking provisions, which prohibit not only the importation, offering to the public, or provision of products and services primarily designed to facilitate circumvention, but also the “manufacture” of such products and services.⁶ Circumvention of copy controls is not prohibited

Thus... Section 1201(b) imposes a blanket ban on trafficking in or marketing of any device that circumvents use restrictions.”).

² See, e.g., Unlocking Technology Act of 2013, H.R. 1892, 113th Cong. (2013), <https://www.congress.gov/113/bills/hr1892/BILLS-113hr1892ih.pdf>; Digital Media Consumers’ Rights Act of 2005, H.R. 1201, 109th Cong. (2005), <https://www.congress.gov/109/bills/hr1201/BILLS-109hr1201ih.pdf>.

³ *Chapter 12 of Title 17: Hearing Before the Subcomm. on Courts, Intellectual Property, and the Internet of the H. Comm. on the Judiciary*, 113th Cong. 115 (2014) (statement of the Library Copyright Alliance); *Chapter 12 of Title 17: Hearing Before the Subcomm. on Courts, Intellectual Property, and the Internet of the H. Comm. on the Judiciary*, 113th Cong. 60 (2014) (testimony of Corynne McSherry, Intellectual Property Director, Electronic Frontier Foundation).

⁴ See, e.g., Christopher Moseng, *The Failures and Possible Redemption of the DMCA Anticircumvention Rulemaking Provision*, 12 J. TECH. L. & POL’Y 333, 352-354 (2007); Krista L. Cox, *Flaws of the 1201 Rulemaking Process*, ARL POLICY NOTES (Jan. 21, 2015), <http://policynotes.arl.org/?p=852>.

⁵ *Chapter 12 of Title 17: Hearing Before the Subcomm. on Courts, Intellectual Property, and the Internet of the H. Comm. on the Judiciary*, 113th Cong. 115 (2014) (statement of the Library Copyright Alliance).

⁶ See Pamela Samuelson, *Intellectual Property and the Digital Economy: Why the Anti-Circumvention Regulations Need to be Revised*, 14 BERKELEY TECH. L.J. 519, 551 (1999) (“It is unclear whether Congress intended for the technologically savvy who could ‘do it themselves’ to be the only ones who could engage in privileged acts of

by the DMCA; however, manufacturing or trafficking in the means by which copy controls can be circumvented, even if for a noninfringing use, is prohibited.⁷

AALL supports proposals to extend exemptions to the anti-trafficking prohibitions. Requiring that the Librarian adopt separate exemptions to anti-trafficking provisions in addition to the anti-circumvention provisions, however, unnecessarily complicates and increases the administrative burden of the triennial rulemaking. Rather, exemptions granted during a triennial rulemaking should automatically include relevant exemptions to 1201(a)(2) and 1201(b).

IV. Permanent Exemptions Should Be Expanded

Congress should revise the current permanent exemption for nonprofit libraries, archives, and educational institutions to establish exemptions addressing persistent needs.

The current exemption in 1201(d) is inadequate for the needs of libraries and archives. The exemption, which only allows for circumvention of access controls for the purpose of making a purchasing decision, allows circumvention in a comparatively rare situation. What is more troubling is that the exemption, as currently framed, only recognizes the needs of libraries and archives as *acquirers* of information; the DMCA entirely ignores the important roles that libraries and archives play as *preservers* and *providers* of information. A reframed exemption should address all of these roles.

Libraries and archives need an exemption that takes into account their need to preserve for public access information locked behind technological protection measures. The current exemption in section 1201(d) does not account for the changing nature of technology and the ways in which libraries collect and provide access to electronic materials. For example, as more scholarly works are only available online, libraries face increasing challenges in archiving materials to allow for permanent access. As technology related to older born-digital materials becomes obsolete, so too do any technological protection measures (TPMs) attached to those works. By not permitting libraries to circumvent or permanently remove obsolete TPMs, the DMCA frustrates preservation of and access to materials.

The development of video technology is an appropriate example. Over the past century, video formats have shifted dramatically, from reels to VHS tapes to laserdiscs to DVDs and digital media files. Ebooks have been released in a variety of formats, including proprietary formats such as AZW and iBooks. Only a fraction of the works released in an obsolete format are rereleased in a newer format; as they are unable to acquire materials in current formats, libraries and archives rely upon section 108(c) to fulfill their important role as preservers of the cultural record. Just as formats become obsolete, so will TPMs, necessitating their circumvention for preservation of the underlying work. However, the DMCA currently does not allow for

circumvention. Yet... even the technically sophisticated will often need to develop a tool to accomplish a privileged circumvention; this would seem to put them at risk under a strict reading of section 1201(b)(1).”).

⁷ Bill D. Herman & Oscar H. Gandy, Jr., *Catch 1201: A Legislative History and Content Analysis of the DMCA Exemption Proceedings*, 24 CARDOZO ARTS & ENT. L.J. 121, 132 (2006) (noting that “not even librarians can develop” technology needed to circumvent copy controls).

circumvention of access controls for preservation.⁸ As such, AALL recommends a permanent exemption for libraries and archives for the purpose of activities permitted under section 108.

In addition to an expanded exemption for libraries and archives, AALL also supports permanent exemptions to facilitate access by print-disabled persons and to allow for circumvention of TPMs on motion pictures for educational uses. These exemptions have proven their necessity in repeated rulemakings. Print-disabled persons are a defined and protected class of individuals that will always need technology to assist with accessing information. Similarly, the use of films is often necessary in classrooms, whether as an accommodation for different learning styles or because the information needed is only available in a film.

V. Treaty Obligations

Amending the DMCA and the rulemaking process as outlined above does not, to our knowledge, interfere with the obligations of the United States under the WIPO Copyright Treaty or the WIPO Performances and Phonograms Treaty. While Section 1201 was enacted to comply with the requirements of these treaties, it is important to note that Section 1201 as written imposes a far broader ban on circumvention than required under the WIPO treaties.⁹ Article 11 of the WIPO Copyright Treaty and Article 18 of the WIPO Performances and Phonograms Treaty contain matching mandates that signatory states provide “adequate legal protection and effective legal remedies” against circumvention of TPMs used to protect rights they are accorded by law.¹⁰ None of the changes suggested here would fall below this standard.

Amendments to the DMCA and the rulemaking process may, however, implicate provisions of most free trade agreements entered into by the United States, including the pending Trans-Pacific Partnership. The language of the anti-circumvention provisions of these agreements varies; for example, the United States-Jordan free trade agreement only contains one brief paragraph covering circumvention of effective technological protection measures,¹¹ while the United States-Korea free trade agreement contains much longer, more detailed anti-circumvention provisions.¹² Anti-circumvention provisions are also included in the Trans-Pacific Partnership.¹³

⁸ Bill D. Herman & Oscar H. Gandy, Jr., *Catch 1201: A Legislative History and Content Analysis of the DMCA Exemption Proceedings*, 24 CARDOZO ARTS & ENT. L.J. 121, 131 (2006) (“Even a librarian who wants only to preserve a decaying digital artifact is prohibited from circumventing an access-controlling TPM to do so.”).

⁹ *WIPO Copyright Treaties Implementation Act; and Online Copyright Liability Limitation Act: Hearing on H.R. 2281 and H.R. 2280 Before the Subcomm. on the Courts and Intellectual Property of the H. Comm. on the Judiciary* 105th Cong. 62 (1997) (testimony of Bruce A. Lehman); Stephen E. Blythe, *The U.S. Digital Millennium Copyright Act and the E.U. Copyright Directive: Comparative Impact on Fair Use Rights*, 8 TUL. J. TECH. & INTELL. PROP. 111 (2006).

¹⁰ World Intellectual Property Organization Copyright Treaty, art. 11, Dec. 20, 1996, S. Treaty Doc. 105-17 (1997); World Intellectual Property Organization Performances and Phonograms Treaty, art. 18, Dec. 20, 1996, S. Treaty Doc. 105-17 (1997).

¹¹ Agreement between the United States of America and the Hashemite Kingdom of Jordan on the Establishment of a Free Trade Area, art. 4, para. 13, U.S.-Jordan, Oct. 24, 2000, <https://ustr.gov/sites/default/files/Jordan%20FTA.pdf>.

¹² Free Trade Agreement between the United States of America and the Republic of Korea, art. 18.1, para. 7, U.S.-Korea, Apr. 1, 2007, https://ustr.gov/sites/default/files/uploads/agreements/fta/korus/asset_upload_file273_12717.pdf.

¹³ Trans-Pacific Partnership, art. 18.68, <https://ustr.gov/sites/default/files/TPP-Final-Text-Intellectual-Property.pdf> (last visited Feb. 25, 2016).

VI. Conclusion

Copyright law has often been referred to as a “delicate balance” between the rights of creators and the rights of users. Unfortunately, section 1201 has too often shifted this balance toward rightsholders over the public good. By bringing section 1201 in harmony with the rest of copyright law, providing for less onerous renewal of exemptions, and creating meaningful permanent exemptions, the Copyright Office and Congress can help restore the balance.

AALL reiterates its appreciation to the Copyright Office for undertaking this inquiry into section 1201 and for the opportunity to comment.